

ARKANSAS ACCOUNTABILITY PROJECT

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Sherwood City Council Information Packet

Council Member Edition

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A neutral, records-based briefing prepared for informed municipal discussion

PUBLICATION ADMINISTRATION

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Purpose

This publication is respectfully provided to the Mayor, City Council, City Administrator, City Attorney, and other municipal officials of the City of Sherwood. It organizes records reviewed by APAP into a concise briefing, identifies questions presented for consideration, and proposes process-focused options for public oversight. It is educational in nature and is not legal advice.

Editorial Standard

- Facts first. Statements are limited to records presently available to APAP.
- Questions before conclusions. The packet identifies matters for discussion rather than declaring legal outcomes.
- Material limitations are stated. Preliminary data is labeled preliminary, and technical exports are not given meanings they cannot support.
- Corrections are documented through version control and release notes.

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NAVIGATION

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Reading note

This packet is designed for sequential reading, but Pages 5, 7, 9, 11, and 13 may also be used as a concise briefing path.

TRANSMITTAL

Letter to the Mayor and Members of the Sherwood City Council

Mayor and Members of the City Council:

The Arkansas Accountability Project respectfully submits this information packet to assist your review of the City of Sherwood's use and administration of Automatic License Plate Reader technology.

The packet is based on public records produced by the city, records made available through Arkansas Freedom of Information Act requests, and publicly available materials. It does not advocate for or against ALPR technology. Its purpose is narrower: to organize the documentary record, identify questions that reasonably arise from that record, and present practical options for transparent municipal oversight.

Sherwood has produced substantial material, including policies, procurement and contractual records, correspondence, practice-and-usage reports, internal audit records, and native electronic network-audit exports. The City's production of machine-readable records has made a more careful and independently verifiable review possible.

APAP recognizes the service responsibilities carried by elected officials, municipal staff, and law-enforcement personnel. This publication is offered in that spirit: respectful, neutral, and focused on the public record.

Respectfully submitted,

Arkansas Accountability Project (APAP)

BRIEFING OVERVIEW

Executive Summary

Central purpose

Provide Council members with a concise factual foundation for discussing governance, transparency, documentation, reporting, and periodic review of Sherwood's ALPR program.

Principal Observations

- Sherwood has maintained an ALPR program since at least the earliest operational timeframe identified in the records reviewed by APAP: 2022.
- The record includes procurement documents, contracts, amendments, correspondence, departmental policy, practice-and-usage reports, internal audit records, and native network-audit exports.
- The current written Sherwood Police Department ALPR policy reviewed by APAP is dated March 24, 2026.
- In July 2026, Sherwood produced audit records covering May 1 through July 6, 2026 in both redacted PDF and native electronic formats.
- Preliminary analysis of the network-audit exports identified 2,306,763 recorded organization occurrences and 3,563 distinct organizations. Those counts do not, by themselves, prove that any listed organization accessed Sherwood-owned data or establish the purpose or outcome of a particular search.

Why Council Review Is Appropriate

ALPR systems involve municipal spending, law-enforcement operations, data governance, interagency connectivity, retention practices, public reporting, and resident trust. Each subject can be reviewed without interfering with active investigations or disclosing protected information. Council review can therefore focus on the governing process: what is authorized, how it is documented, what is reported, who verifies compliance, and how residents receive reliable information.

Source note: Sherwood records reviewed by APAP; Sherwood FOIA Request CITY-2026-117; native network-audit exports produced July 13, 2026. Counts are preliminary and subject to continuing quality assurance.

PROJECT FOUNDATION

Scope and Methodology

Scope

This edition addresses the municipal governance record surrounding Sherwood's ALPR program. It is not an audit of individual criminal investigations, and it does not attempt to evaluate the lawfulness of any specific stop, search, arrest, or prosecution.

Records-Based Method

1. Collect records through Arkansas FOIA requests and publicly available sources.
2. Preserve original files and native electronic formats whenever available.
3. Separate facts shown by the records from interpretations or unresolved questions.
4. Use reproducible calculations for quantitative observations and state the fields used.
5. Identify limitations before presenting policy questions.
6. Maintain version history so corrections and additions can be traced.

Review Boundaries

- A record showing that an organization appears in a network export is not automatically treated as proof that the organization accessed Sherwood data.
- A blank, redacted, or incomplete field is not automatically treated as misconduct or noncompliance.
- The absence of a record from APAP's collection does not establish that the record does not exist.
- Questions involving statutory interpretation are presented for legal review, not resolved by APAP in this packet.

CHRONOLOGY

Documented Program Timeline

Dates are presented for context and are not findings of compliance or noncompliance.

Date / Period	Documented Event	Source Category
2022	Earliest documented operational timeframe identified during APAP's review; Sherwood begins implementation of an ALPR program using Flock Safety technology.	Procurement / operational records
2022–2025	Contracts, amendments, correspondence, and related administrative records document continuing operation and administration.	FOIA production
Jan.–Jun. 2025	Practice-and-usage reporting period reflected in records reviewed by APAP.	Usage reports
Feb. 11, 2026	Publicly available material reviewed by APAP indicates ALPR technology was in operational use.	Public record
Mar. 24, 2026	Date of the current written Sherwood Police Department ALPR policy reviewed by APAP.	Department policy
May 1–Jul. 6, 2026	Period covered by internal and network audit records produced under CITY-2026-117.	Audit exports
July 13, 2026	Sherwood completes the referenced FOIA production, including native electronic files.	FOIA response

Source note: Procurement and operational records; department policy; public materials; Sherwood FOIA Request CITY-2026-117 and associated production.

EVIDENCE MAP

Public Records Reviewed

Record Category	Examples Reviewed
Procurement and authorization	Purchase requests, procurement records, invoices, agreements, amendments, and related administrative documents.
Contractual records	Flock Safety agreements and records concerning equipment, services, terms, renewals, and administration.
Department policy	Written Sherwood Police Department policy governing ALPR operations and authorized use.
Correspondence	Communications concerning administration, permitting, installation, payment, and program operations.
Practice-and-usage reporting	Reports describing program usage and operational activity during defined reporting periods.
Internal audit records	Redacted PDF audit logs for May 2026, June 2026, and July 1–6, 2026.
Network-audit exports	Native electronic records for May 2026, June 2026, and July 1–6, 2026.
Publicly available materials	Public portals, meeting information, and other materials available without a records request.

Evidence-status note

The appendix identifies record categories rather than reproducing every exhibit. Complete exhibit numbering and repository cross-references should be added during the final production pass.

CURRENT RECORD

What the Records Establish

Program Administration

The City has maintained records relating to procurement, contracting, installation, policy, reporting, and administration of its ALPR program.

Written Policy

A written Sherwood Police Department ALPR policy has been produced. The version reviewed by APAP is dated March 24, 2026 and provides the department's written operational guidance.

Auditability

The system generates audit records containing structured fields that can support retrospective review. Sherwood produced both redacted human-readable reports and native machine-readable files for the May 1–July 6, 2026 period.

Network Scale

Preliminary analysis of the native network exports identified 2,306,763 recorded organization occurrences and 3,563 distinct organizations represented in the "Org Name" field. These figures describe the exported data structure and frequency of organization names. They do not independently establish that a named organization accessed Sherwood-owned ALPR data.

Unresolved by the Present Record

- The precise meaning of each network-audit occurrence in relation to Sherwood-owned data.
- The extent to which each search or occurrence was tied to a documented investigative purpose.
- The complete relationship between written policy, system configuration, supervisory review, and public reporting across the full operational period.
- Whether additional records would materially change the observations in this edition.

LEGAL CONTEXT

Applicable Arkansas Framework

Arkansas Code Annotated §§ 12-12-1801 through 12-12-1808 provide the state statutory framework specifically addressing automatic license plate reader systems. The Arkansas Freedom of Information Act, Ark. Code Ann. § 25-19-101 et seq., governs access to public records subject to applicable exemptions.

Subjects Relevant to Council Oversight

- Authorized governmental and law-enforcement use of ALPR systems.
- Collection, storage, retention, and disclosure of ALPR information.
- Use of information in connection with investigations and other authorized purposes.
- Documentation, policies, auditability, and handling of protected investigative information.
- Public access to non-exempt administrative, procurement, policy, and audit records under Arkansas FOIA.

Role of This Packet

This packet does not supply legal conclusions concerning the application of those provisions to any particular record or practice. Questions of statutory interpretation should be addressed by the City Attorney, other qualified counsel, or appropriate state authorities using the complete factual record.

Council opportunity

The Council can request clear legal explanations, written administrative procedures, and periodic reporting without predetermining whether any violation has occurred.

DISCUSSION AGENDA

Questions Presented

1. What formal municipal authorization, approval, and budget history supports the program from initial implementation through the present?
2. What written policy governed ALPR use before March 24, 2026, and how were officers instructed, trained, and supervised during earlier periods?
3. What does each field in the internal and network audit exports mean, and which fields reliably identify an actual search of Sherwood-owned data?
4. How does the department document the investigative purpose, case number, or other authorized basis for searches?
5. What supervisory review is performed, how often is it performed, and how are exceptions or incomplete entries addressed?
6. What data-retention settings are currently configured, who can change them, and how is compliance verified?
7. Which outside organizations may receive or search Sherwood-related data, under what rules, and with what audit trail?
8. What aggregate information can be reported publicly without compromising active investigations or protected information?
9. What renewal, amendment, or expansion decisions will return to the Council for review?
10. What independent legal, technical, or administrative review would assist the Council in resolving remaining questions?
11. Confirm that the official contract file contains all executed agreements and amendments.
12. Verify whether online Terms and Conditions, privacy policies, and referenced documentation have been preserved with the contract file.
13. Review whether reporting required by Arkansas law is being maintained and is readily available for Council oversight.
14. Confirm the City's current written ALPR policy, approval history, and effective dates.
15. Determine what periodic reports, if any, are presented to the Council regarding ALPR operations and performance.
16. Review records-retention practices for documents incorporated by reference into vendor agreements.
17. Consider whether periodic policy reviews and public reporting schedules should be formally established.
18. Ensure procurement, implementation, and renewal records remain complete and accessible for future review.

19. Have City staff reviewed current reporting, documentation, and written policy for consistency with the reporting and policy framework established by Arkansas Code Annotated §§ 12-12-1801 through 12-12-1808, including § 12-12-1804?

GOVERNANCE OPTIONS

Topics for Council Consideration

Authorization and Procurement

Establish a complete chronology of initial authorization, purchase requests, contracting, amendments, installation, activation, renewals, and current financial obligations.

Policy History and Training

Document what written guidance applied during each operational period and how training and supervisory expectations were communicated.

Data Governance

Clarify retention, sharing, user access, hot-list configuration, audit fields, and responsibility for system settings.

Interagency Connectivity

Explain the operational meaning of network relationships and the controls that govern searches or data availability beyond Sherwood.

Audit and Compliance Review

Adopt a defined review schedule, identify the reviewing official, and specify how incomplete reasons, case numbers, or unusual activity are handled.

Public Reporting

Publish aggregate information that informs residents while protecting active investigations, personal data, and legitimate law-enforcement methods.

Reporting Consistency with Arkansas Law

As part of its oversight responsibilities, the Council may wish to periodically review whether the City's administrative reporting, documentation, and record-retention practices remain consistent with the reporting and policy framework established by Arkansas Code Annotated §§ 12-12-1801 through 12-12-1808, including the policy and procedural provisions of § 12-12-1804. Periodic review can support transparency, accountability, and informed public oversight while allowing updates as statutory or administrative requirements evolve.

Contract Renewal and Expansion

Use future renewals, camera additions, or service changes as formal checkpoints for policy, performance, cost, and public reporting.

Public programs frequently rely upon vendor-maintained websites for contracts, policies, technical documentation, terms of service, privacy statements, and implementation guidance. Because online materials may be revised, relocated, removed, or become unavailable over time, municipalities may wish to preserve the versions relied upon during procurement,

implementation, and ongoing administration.

During preparation of this publication, APAP attempted to locate historical archived versions of the Flock Safety Terms and Conditions webpage through the Internet Archive Wayback Machine. The service displayed a notice indicating that the requested URL had been excluded from the Wayback Machine. APAP makes no representation regarding the reason for that exclusion and draws no conclusion from the observation itself. The observation is included solely to illustrate that historical vendor webpages may not always remain independently accessible.

This broader records-management consideration applies to any vendor whose contracts or obligations incorporate online terms, policies, or technical documentation by reference. Preserving contemporaneous copies of those materials can improve transparency and provide a stable historical record for future policy review.

Recommendation 2 – Preserve Referenced Contract Documents

For contracts that incorporate vendor webpages, online terms, privacy policies, technical specifications, or user documentation by reference, the City should consider preserving dated copies of those materials at the time of contract execution, renewal, and amendment. Maintaining contemporaneous copies promotes transparency and reduces uncertainty if referenced online materials are later modified or become unavailable.

PROCESS-FOCUSED OPTIONS

Recommendations

Create an official program chronology

Direct staff to assemble the complete authorization, procurement, installation, activation, policy, amendment, and renewal timeline.

Request a written technical glossary

Require the vendor and department to define each audit field, network metric, search type, and configuration relevant to Council review.

Adopt periodic aggregate reporting

Receive a recurring report covering system usage, documented search purposes, hot-list alerts, outside-agency relationships, retention settings, policy changes, complaints, and corrective actions, while excluding protected information.

Establish documented supervisory review

Define who reviews audit logs, the frequency of review, the standards applied, and the process for correcting incomplete or unsupported entries.

Schedule annual policy review

Place the ALPR policy on a recurring Council or committee review calendar and require written notice of material revisions.

Use renewal as an oversight checkpoint

Before renewal or expansion, review cost, performance measures, policy compliance, data governance, and resident concerns.

Preserve the public record

Maintain contracts, policies, reports, configuration summaries, audit documentation, and Council actions in an accessible municipal repository.

Records Recommended for Preservation

- Executed contract and amendments
- Terms and Conditions in effect on execution date
- Privacy Policy in effect on execution date
- Data Processing or Data Use documentation
- Product documentation and user manuals relied upon during implementation
- Procurement specifications and vendor responses
- Public transparency pages referenced by the parties
- Implementation and training materials
- Renewal terms and any online documents incorporated by reference

Background

Modern software and cloud-service agreements frequently reference online terms, privacy policies, technical documentation, security practices, user manuals, and implementation guides. These external documents may be updated over time without changing the signed contract itself.

Suggested Preservation Practices

Preserve each referenced document as a PDF and, where practical, an HTML copy. Record the source URL, date and time captured, file hash (such as SHA-256), and retain screenshots for webpages that are material to contract interpretation.

Benefits

Maintaining contemporaneous copies creates a stable historical record, supports institutional continuity when personnel change, assists future audits, and reduces uncertainty if vendor webpages are later revised, relocated, or removed.

Editorial Note

Nothing in this appendix implies that any vendor has acted improperly. The recommendation reflects a general governance practice intended to strengthen municipal records management.

Obtain legal review of unresolved statutory questions

Request a written legal analysis based on the complete record, particularly where retention, disclosure, sharing, or investigative-use questions remain unresolved.

Periodically Review Reporting for Statutory Consistency

Request periodic confirmation from the appropriate City officials that administrative reports, written policies, and supporting documentation remain consistent with the reporting and policy framework established by Arkansas Code Annotated §§ 12-12-1801 through 12-12-1808, including the policy and procedural provisions of § 12-12-1804.

MEETING AID

Council Discussion Checklist

Discussion Item	Status	Follow-up / Owner
Complete procurement and authorization chronology provided	☐ Complete ☐ Pending	
Current contract, amendments, renewal dates, and total obligations identified	☐ Complete ☐ Pending	
Policy history before and after March 24, 2026 explained	☐ Complete ☐ Pending	
Officer training and supervisory review process documented	☐ Complete ☐ Pending	
Audit fields and network-export terminology defined	☐ Complete ☐ Pending	
Current retention configuration and change authority identified	☐ Complete ☐ Pending	
Outside-agency access and sharing rules explained	☐ Complete ☐ Pending	
Aggregate public-reporting format proposed	☐ Complete ☐ Pending	
Legal questions assigned for written review	☐ Complete ☐ Pending	
Next review date and responsible officials established	☐ Complete ☐ Pending	
Maintain contracts, policies, reports, configuration summaries, audit documentation, and Council actions in an accessible municipal repository.	☐ Complete ☐ Pending	
Document and preserve Terms and Conditions in effect on execution date on current and future contracts.	☐ Complete ☐ Pending	
Document and preserve Privacy Policy in effect on execution date of current and future contracts.	☐ Complete ☐ Pending	

Suggested closing question

What information does the Council still need before it can confidently describe the program's authorization, governance, safeguards, and public accountability?

PUBLICATION STANDARDS

About APAP

Mission

The Arkansas Accountability Project develops neutral, evidence-based public reference materials concerning governmental administration, public records, technology, and legislative policy in Arkansas.

Editorial Principles

- No conclusion without a supporting source.
- Benefit of the doubt where the record is incomplete or ambiguous.
- Clear separation of fact, inference, question, and recommendation.
- Corrections and revisions documented through version control.
- Respect for public officials, employees, law-enforcement personnel, and residents.

Professional Responsibility

APAP publications are intended to improve the quality of public discussion. They should not overstate the evidence, conceal limitations, or substitute rhetoric for verification. When a factual error is identified, the publication should be corrected and the revision documented.

Website

ArkansasAccountabilityProject.org

REFERENCE MATERIAL

Appendices and Release Notes

Appendix A — Evidence Categories

- Sherwood procurement and purchase records
- Flock Safety agreements and amendments
- Sherwood Police Department ALPR policy
- Administrative and permitting correspondence
- Practice-and-usage reports
- May 2026 internal audit report
- June 2026 internal audit report
- July 1–6, 2026 internal audit report
- May 2026 native network-audit export
- June 2026 native network-audit export
- July 1–6, 2026 native network-audit export
- Publicly available portal and meeting materials

Appendix B — Preliminary Data Note

The preliminary network analysis uses the “Org Name” field contained in native exports produced under Sherwood FOIA Request CITY-2026-117. The current count is 2,306,763 recorded organization occurrences representing 3,563 distinct organizations. The occurrence count is a descriptive measure of rows or entries associated with organization names; it is not, standing alone, a count of confirmed access events involving Sherwood-owned ALPR data.